

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR.
JUDICIAL DEPARTMENT**

Criminal Appeal No.161/2014.

Malik Muhammad Ejaz Channar

vs.

The State etc.

JUDGMENT

Date of hearing	07.10.2021
Appellant by:	Ch. Riaz Ahmad, Advocate.
State by:	Malik Muhammad Latif, Additional Prosecutor General.
Complainant by:	Mr. S. M. Areeb, Advocate for the complainant

Muhammad Amjad Rafiq, J: - Precisely the backend facts of the case as narrated by Mst. Sumaira Ahsan (respondent/complainant) in a complaint filed under section 5 of the Illegal Dispossession Act, 2005 carried the allegation against Malik Muhammad Ejaz Channar accused/appellant that he with the abetment of some others, forcibly entered into her house and illegally dispossessed the complainant from the plot owned and possessed by her. The accused/appellant was summoned and while facing trial, vide judgment dated 03.04.2014 passed by learned Additional Sessions Judge, Bahawalpur, he was convicted under section 3(2) of the Illegal Dispossession Act, 2005 and sentenced to imprisonment for eight years with fine of Rs.50,000/-, in default to further undergo six months; also ordered to pay Rs.50,000/- compensation to the complainant or in default to further suffer six months imprisonment. Further the Officer Incharge of police station Cantt, Bahawalpur was directed to restore/handover the possession of the property/premises in question to the complainant, immediately. Appellant assailed said conviction and sentence through present appeal No.161/2014.

2. The learned counsel for the respondent/complainant Mst. Sumaira Ahsan submitted before this Court a compromise deed executed between the parties, which is placed on the file as MARK-A. The crux of the said deed is that disputed property has already been taken back by the complainant, the documents of her sole ownership have been admitted by the accused/appellant, there remains no dispute between them and thus she has no objection on acceptance of appeal and acquittal of the accused.

3. It was contention of the parties that offence under section 3 of Illegal Dispossession Act, 2005 is compoundable in the light of judgment reported as “AKHTER HUSSAIN versus STATION HOUSE OFFICER SACHAL KARACHI AND 2 OTHERS” (2020 P Crl. L J Note 20-Sindh), therefore, accused may be acquitted on the basis of compromise arrived at between the parties. I have examined the said judgment, the learned Judge in chamber has given following observation: -

“Although, the statute viz. The Illegal Dispossession Act, 2005 is silent, whether it is compoundable or not compoundable, however, the dispute being related to property, thus, the same is presumed to be of civil nature, and in civil rights the room for negotiation ever remains open for the courts to decide the issue.”

With utmost respect, I am not agreeing with the above observation due the reasons that by virtue of section 9 of said Act, provisions Code of Criminal Procedure, 1898 are applicable; similarly, second schedule of Cr.P.C. shall also be applicable where under the title *“Offences against other laws”* it is mentioned in column No.6 as all the offences are “not compoundable”. Now it is trite that until the legislature makes the offence in special laws (other laws) compoundable, it would be considered as non-compoundable. Entries in second schedule of Cr.P.C. could only be surpassed if the special law gives a different status to the offences punishable under that law, as the legislature in the case of Illegal Dispossession Act, 2005 has declared the offences under this Act as non-cognizable; otherwise in second schedule offences against other laws which are punishable up to seven years and above are shown cognizable. Question of application of section 345 Cr.P.C. on offence under Illegal Dispossession Act, 2005 also does not arise because section 345 Cr.P.C.

talks and tabulates the offences under P.P.C. only. It is safely concluded that offence u/s 3 of Illegal Dispossession Act, 2005 is not compoundable.

4. A compromise in non-compoundable offence is considered only a mitigating circumstance for reduction in sentence. Honourable Supreme Court in the case “GHULAM FARID alias FARIDA versus THE STATE” (PLD 2006 Supreme Court 53) settled the query in following terms: -

“There is no cavil to the proposition tat the Court at all levels without any legal impediment, while deciding the criminal cases on merits, in the regular proceedings, can consider the compromise of an offender with the victim or his legal heirs, as a mitigating circumstances for the purpose of question of sentence in a non-compoundable offence but after final disposal of a criminal matter, Court cannot assume jurisdiction to re-open the case on merits in collateral proceedings rising out of miscellaneous application.”

In the same judgment, with reference to case “MUHAMMAD RAWAB versus STATE ” (2004 SCMR 1170), it was further held that: -

“The provisions as contained in section 345, Cr.P.C., cannot be stretched too far by including the non-compoundable offence therein under the grab of humanitarian grounds or any other extraneous considerationIt may be noted that tabulation of the offences s made under section 345, Cr.P.C., being unambiguous remove all doubts, uncertainty and must be taken as complete and comprehensive guide for compounding the offences. The judicial consensus seems to be that “The Legislature has laid down in this section the test for determining the classes of offence which concern individuals only as distinguished form those which have reference to the interest of the State and Courts of law cannot go beyond that test and substitute for it one of their own. It is against the policy to compound non-compoundable offence, keeping in view the state of facts existing on the date of application to compound. No offences shall be compounded except where the provision of section 345, Cr.P.C., are satisfied as to all matters mentioned in the section.”

Reference may also be made to the cases “MUHAMMAD NAWAZ versus The STATE” (PLD 2014 Supreme Court 383), “MUHAMMAD RAWAB versus THE STATE and another” (2006 SCMR 1703), “JAVED IQBAL and another versus THE STATE” (2012 SCMR 140) and “MUHAMMAD AKHTAR alias HUSSAIN versus THE STATE” (PLD 2007 Supreme Court 447).

However, seeking acquittal on the basis of compromise can only be allowed if the prosecution is withdrawn with the consent of the court by public prosecutor or by the complainant as the case may be. To understand the scheme of law, it would be appropriate to highlight the relevant arrangements available in the law.

5. Institution of criminal proceedings is mainly controlled by the provisions of Code of Criminal Procedure 1898; development in stages up to logical conclusion is too regulated through similar law subject to any criteria set through General Clauses Act or a special procedure introduced by any special law. General application of code of criminal procedure on a special law for procedures not ‘specified or prohibited’ is the principle of law embodied in two philosophies under the touch of “*express provision and specific prohibition*” which leads when the court finds no other way to advance the cause of justice in any given circumstances. It equally carries weight that if the provision of law which rails the proceedings during trial can also be stretched at the level of appellate stage to give effect to the contentions of the respective parties.

6. A criminal trial though is controlled by the court yet the parties are also authorized to terminate the same at any stage, requesting the court to stop the prosecution. We know criminal trial is concluded/terminated with three main results; 1st, either the accused earns premature acquittal u/s 249A/265K or acquitted after full dressed trial u/s 245/265H Cr.P.C. or convicted u/s 243/245(2) or 265H (2) Cr.P.C.; 2nd, when parties entered into compromise and the accused is acquitted; because effect of such compromise is of acquittal as embodied in section 345 (6) of Cr.P.C. 3rd, when the public prosecutor opts to withdraw from prosecution which is regulated u/s 494 Cr.P.C. read with section 10(3)(e)&(f) of Punjab Criminal Prosecution Service (Constitution, Functions and Powers) Act, 2006 and such withdrawal during trial amounts to acquittal of accused from the charges. Principle of Nolle Prosequi or withdrawal from prosecution has well been explained by Hon’ble Supreme Court in the cases “MIR HASSAN versus TARIQ SAEED AND 2 others” (PLD 1977 Supreme Court 451) and “SAAD

SHIBLI versus THE STATE AND ANOTHER and STATE versus PUTTAN AND OTHERS” (PLD 1981 Supreme Court 617).

7. Similar is the procedure when a complaint is processed u/s 190 read with section 200/202 Cr. P.C., it can be withdrawn u/s 248 Cr. P.C. during the trial and it also results in acquittal of accused. No further trial can be conducted later as it amounts to double jeopardy. Section 248 Cr.P.C. does not fall within the exceptions to section 403 Cr. P.C.; though such section recognizes the following situation where section 403 Cr.P.C. shall not apply;

“The dismissal of a complaint, the stopping of proceedings under Section 249, or the discharge of the accused is not an acquittal for the purposes of this section.”

Dismissal of complaint is regulated under section 203 Cr. P.C. which runs as under: -

203. Dismissal of complaints: [The Court], before whom a complaint is made or to whom it has been transferred, [or sent] may dismiss the complaint, if, after considering the Statement on oath (if any) of the complainant and the result of the investigation or inquiry (if any) under Section 202 there is in his judgment no sufficient ground for proceeding. In such cases he shall briefly record his reasons for so doing.

Above provision reflects that it applies at the stage preliminary to the commencement of trial; therefore, if complaint is withdrawn during that stage, result shall not be in acquittal of accused; reliance is on “Azmat Bibi versus Asifa Riaz” (PLD 2002 Supreme Court 687) and “Arshad Ali versus Liaqat Dhudhi” (2008 MLD 816-Lahore). If the complaint is withdrawn during the trial, the complaint shall not be dismissed rather accused would stand acquitted; reliance is on “Muhammad Ayub Awan versus Muhammad Yaqub” (1994 SCMR 1137).

8. There is no cavil to the proposition that complaint can be withdrawn during the trial u/s 248 Cr.P.C. but once the accused is convicted and an appeal against conviction is pending, whether the complaint on the basis of compromise or on any other reason could be withdrawn is the query that is to be answered in this case. Before dilating on this question, let read the section 248 Cr.P.C. which is as follows: -

248. Withdrawal of complaint: *If a complainant, at any time before a final order is passed in any case under this Chapter satisfies the Magistrate that there are sufficient grounds for permitting him to withdraw his complaint the Magistrate may permit him to withdraw the same, and shall thereupon acquit the accused.*

From the plain reading of above provisions, it is reflected that there are two preconditions for permission to withdraw the complaint, which are as follows;

- i. Before the final order is passed
- ii. Satisfy that there are sufficient grounds

Final order, obviously means an order of acquittal or conviction upon conclusion of trial whereas sufficient grounds may entail out of court settlement for any consideration, or the demise of the parties or the loss is made good or any alternate dispute resolution. Depending upon the circumstance of the case, court can either grant or withhold the permission. Withholding of permission may amount to continuation of prosecution even through any other person. Reliance is placed on “NISAR AHMAD versus THE STATE” (PLD 1976 Lahore 1354).

9. In section 248 Cr.P.C. word “*final order*” connotes the culmination of proceedings up to the last remedy available to the parties to over turn the decision of trial court because final order of acquittal or conviction can also be passed on an appeal before the superior courts; therefore, section 248 Cr.P.C. would be available during proceedings before appellate court as well. Even otherwise, it is trite that appeal is considered as continuation of trial; reliance is placed on the cases “MUHAMMAD HANIF and others vs THE STATE and others” (2001 SMR 84), “MUJAHD HUSSAIN vs THE STATE” (2004 P Cr L J 874), “NAZEER AHMED and another versus THE STATE” (1999 MLD 1374-Lahore), “RAZA HUSSAIN versus THE STATE” (1989 MLD 3967-Lahore), “STATE and 5 others versus MUHAMMAD AKRAM and 5 others” (1987 P Cr. L J 1728-SC AJK), “ASGHAR HAYAT and others versus THE STATE” (1985 P Cr. L J 2638) “Mst. SAID BIBI versus THE STATE” (1971 P Cr. L J 39-Lahore) and “PARVAIZ KHAN versus The STATE through Additional Advocate-General K.P.K. Peshawar and another” (2018 YLR Note 99-Peshawar).

10. Section 248 Cr. P.C falls in Chapter XX of Cr. P.C. which relates to trial by Magistrate whereas trial by Court of Session is regulated under Chapter XXII-A Cr.P.C., contention that section 248 Cr. P.C. shall not be available to Court of Session is a question that has its different outcome in the light of provisions of Illegal Dispossession Act, 2005. Section 4 of said Act is necessarily to be read before answering this query: -

4. Cognizance of offence .- (1) *Notwithstanding anything contained in the Code or any law for the time being in force, the contravention of section 3 shall be triable by the Court of Session on a complaint.*

(2) *The offence under this Act shall be non-cognizable.*

(3) *The Court at any stage of the proceedings may direct the police to arrest the accused.*

Above clarifies that offences under Illegal Dispossession Act shall be tried by Court of Sessions, but it does not specify the application of Chapter XX or XXII-A for the purpose of trial as usually supplied through legislation for courts which work under special laws. In this law even under section-5, mode of inquiry and investigation is entirely different as to one mentioned u/s 202 Cr.P.C. therefore, when there is contrast which principle is to follow, either principle of specific prohibition or principle of express provision, the circumstances always lean toward specific prohibition. As there is no specific prohibition with respect to application of section 248 Cr.P.C. on complaint under Illegal dispossession Act, 2005; therefore, such provision shall be available to the court trying such complaint. The provision of section 9 of this Act also supports what has been discussed above. For reference, section 9 reads as under;

9. Application of Code: - *Unless otherwise provided in this Act, the provisions of the Code of Criminal Procedure, 1898 (V of 1898), shall apply to proceedings under this Act.*

10. As here in the instant case the parties have entered into compromise upon some consideration as a result of an out of court settlement, therefore, the complainant present before the court states that she does not want to pursue the case any more and opts to withdraw her

complaint and in this respect, she has also submitted a compromise deed between the parties Mark-A wherein she agrees to withdrawal of her complaint; therefore, withdrawal of complaint is allowed in the circumstance and as a result whereof, appellant is acquitted of the charge. Record of trial court be returned immediately.

(MUHAMMAD AMJAD RAFIQ)
JUDGE

Approved for reporting.

Judge.

*Javed**